

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh :Index Number:
Date Purchased:
Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
Police Officer Wilfredo Benitez, Shield 15506 of the 44 :
Precinct and New York City Police Officers John Doe, :: Plaintiff Gumaneh's
residence is:
: 1330 Webster Avenue
Bronx, NY 10455

Defendants

-----X

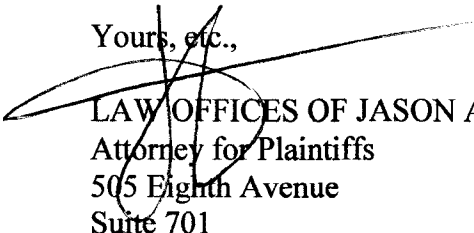
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: December 28, 2017
New York, NY

Yours, etc.,


LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Mario Dieujuste, Shield 15799 of PSA 7

New York City Police Officers John Doe,

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Olusegun Grant, Saibo Sidibeh and Muhammed Gumaneh :

Plaintiffs : VERIFIED COMPLAINT

-against- :

City of New York, New York City Police Department, :
Police Officer Wilfredo Benitez, Shield 15506 of the 44 :
Precinct and New York City Police Officers John Doe, :

Defendants :
-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Olusegun Grant, (hereinafter referred to as "GRANT") is a resident of Fairfield County, State of Connecticut.
2. That at all times hereinafter mentioned, Plaintiff Saibo Sidibeh, (hereinafter referred to as "SIDIBEH") is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Muhammed Gumaneh (hereinafter referred to as "GUMANEH") is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, Police Officer Wilfredo Benitez, shield 15506 of the 44 Precinct, (hereinafter referred to as "BENITEZ") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, the New York City Police Officers John Doe, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.

6. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

7. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

8. On or about March 10, 2016 notice required by Municipal Law 50-E was given to City of New York, by personal service as to GRANT. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiffs and no compensation has been offered by the City of New York.

9. On or about March 23, 2016 notice required by Municipal Law 50-E was given to City of New York, by personal service as to SIDIBEH. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiffs and no compensation has been offered by the City of New York.

10. On or about May 24, 2017 notice required by Municipal Law 50-E was given to City of New York, by personal service as to GUMANEH. Said notice set forth the facts underlying Plaintiffs’ claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiffs and no compensation has been offered by the City of New York.

11. On September 7, 2017 the Honorable Mitchell Danziger deemed the Notice of Claim filed as to GUMANEH filed on May 24, 2017, timely as to all causes of action.

12. On or about May 19, 2017, a hearing required by Municipal Law 50-H was conducted. At said hearing, GRANT and SIDIBEH testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

13. On or about May 19, 2017, a hearing required by Municipal Law 50-H was conducted. At said hearing, GRANT and SIDIBEH testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

14. On or about December 12, 2017, a hearing required by Municipal Law 50-H was conducted. At said hearing, GUMANEH testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

15. That on or about February 17, 2017 at approximately 4:00 P.M. in the vicinity of Marcy Place and Sheridan Avenue, Bronx, NY Plaintiffs were walking towards the home of GUMANEH when BENITEZ and DOES stopped, handcuffed and arrested Plaintiffs for no reason.

16. That at no time did Plaintiffs engage in any criminal or unlawful behavior.

17. That at no time did Plaintiffs trespass onto school property.

18. That after Plaintiffs were arrested they were transported to the 44 police precinct.

19. That while Plaintiffs were inside of the 44 precinct, Plaintiffs were held in a holding cell occupied with other people for several hours

20. That while Plaintiffs were inside of the 46 precinct, they were each subjected to a strip search and that nothing of an illegal nature was found on any of them.

21. That after several hours Plaintiffs were brought to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY 10451.

22. That while Plaintiffs were in Central Booking they were each subjected to harassment from other prisoners.

23. That on or about February 18, 2017 Plaintiffs were each arraigned in Bronx County Criminal Court charging them with Criminal Trespass in the Third Degree and related offenses.

24. That at the time of Plaintiffs' arraignment, they were each released on his own recognizance and ordered to return to court.

25. That on and between February 18, 2017 through August 8, 2017, Plaintiffs made several Court appearances until the matter was dismissed upon application of the Bronx County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

26. Plaintiff GRANT repeats, reiterates and realleges the allegations contained in paragraphs 1 through 25, as if more fully stated herein at length.

27. That Defendants acted with actual malice toward Plaintiff GRANT and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

28. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

29. That as a result of the actions by Defendants, Plaintiff GRANT was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

30. That as a result of the Defendants' actions, Plaintiff GRANT has been unable to sleep.

31. That as a result of the Defendants' actions, Plaintiff GRANT missed several days from work.

32. That as a result of the Defendants' actions, Plaintiff GRANT missed several days from school.

33. That as a result of the Defendants' actions Plaintiff GRANT sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

34. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

35. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff GRANT as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

36. Defendants having no lawful authority to arrest Plaintiff GRANT, did, nevertheless, unlawfully arrest Plaintiff GRANT with actual malice toward him and with willful and wanton

indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff GRANT is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Defendants conspired to violate Plaintiff GRANT's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff GRANT is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

39. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

40. Plaintiff GRANT was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff GRANT to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff GRANT by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff GRANT. Plaintiff GRANT is thus entitled to compensatory and exemplary damages.

41. That during the pendency of the case, Defendants maliciously prosecuted GRANT by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. GRANT is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

42. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. At all times pertinent hereto, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

44. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that BENITEZ and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

45. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. The City of New York and New York City Police Department's failure to provide adequate training and supervision to BENITEZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff GRANT. Plaintiff GRANT is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

47. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff GRANT.

49. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff GRANT.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

50. Plaintiff SIDIBEH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51 as if more fully stated herein at length.

51. That Defendants acted with actual malice toward Plaintiff SIDIBEH and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff SIDIBEH.

52. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

53. That as a result of the actions by Defendants, Plaintiff SIDIBEH was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

54. That as a result of the Defendants' actions, Plaintiff SIDIBEH has been unable to sleep.

55. That as a result of the Defendants' actions, Plaintiff SIDIBEH missed several days from work.

56. That as a result of the Defendants' actions, Plaintiff SIDIBEH missed several days from school.

57. That as a result of the Defendants' actions Plaintiff SIDIBEH sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

58. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 57, as if more fully stated herein at length.

59. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff SIDIBEH as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

60. Defendants having no lawful authority to arrest Plaintiff SIDIBEH, did, nevertheless, unlawfully arrest Plaintiff SIDIBEH with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff SIDIBEH is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

61. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 60, as if more fully stated herein at length.

62. Defendants conspired to violate Plaintiff SIDIBEH's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff SIDIBEH is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

63. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 62, as if more fully stated herein at length.

64. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff SIDIBEH to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff SIDIBEH by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff SIDIBEH. Plaintiff SIDIBEH is thus entitled to compensatory and exemplary damages.

65. That during the pendency of the case, Defendants maliciously prosecuted SIDIBEH by continuing to cooperate in a prosecution when Plaintiff should never have been arrested.

SIDIBEH is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

66. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 65, as if more fully stated herein at length.

67. At all times pertinent hereto, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

68. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that BENITEZ and DOES committed within the scope of their employment.

AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

69. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68, as if more fully stated herein at length.

70. The City of New York and New York City Police Department's failure to provide adequate training and supervision to BENITEZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff SIDIBEH. Plaintiff SIDIBEH is thus entitled to compensatory exemplary damages.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT

71. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 70, as if more fully stated herein at length.

72. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff SIDIBEH.

73. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff SIDIBEH.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS DEFENDANTS

74. Plaintiff GUMANEH repeats, reiterates and realleges the allegations contained in paragraphs 1 through 73 as if more fully stated herein at length.

75. That Defendants acted with actual malice toward Plaintiff GUMANEH and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff GUMANEH.

76. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

77. That as a result of the actions by Defendants, Plaintiff GUMANEH was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

78. That as a result of the Defendants' actions, Plaintiff GUMANEH has been unable to sleep.

79. That as a result of the Defendants' actions, Plaintiff GUMANEH missed several days from work.

80. That as a result of the Defendants' actions, Plaintiff GUMANEH missed several days from school.

81. That as a result of the Defendants' actions Plaintiff GUMANEH sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

82. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 81, as if more fully stated herein at length.

83. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff GUMANEH as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

84. Defendants having no lawful authority to arrest Plaintiff GUMANEH, did, nevertheless, unlawfully arrest Plaintiff GUMANEH with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff GUMANEH is entitled to both compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

85. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 84, as if more fully stated herein at length.

86. Defendants conspired to violate Plaintiff GUMANEH's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff GUMANEH is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

87. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 86, as if more fully stated herein at length.

88. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff GUMANEH to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff GUMANEH by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff GUMANEH. Plaintiff GUMANEH is thus entitled to compensatory and exemplary damages.

89. That during the pendency of the case, Defendants maliciously prosecuted GUMANEH by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. GUMANEH is thus entitled to compensatory and exemplary damages.

**AS AND FOR A NINETEENTH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

90. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 89, as if more fully stated herein at length.

91. At all times pertinent hereto, BENITEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

92. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that BENITEZ and DOES committed within the scope of their employment.

**AS AND FOR A TWENTIETH CAUSE OF ACTION AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

93. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 92, as if more fully stated herein at length.

94. The City of New York and New York City Police Department's failure to provide adequate training and supervision to BENITEZ and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff GUMANEH. Plaintiff GUMANEH is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW
YORK AND NEW YORK CITY POLICE DEPARTMENT**

95. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 94, as if more fully stated herein at length.

96. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff GUMANEH.

97. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff GUMANEH.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction

of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

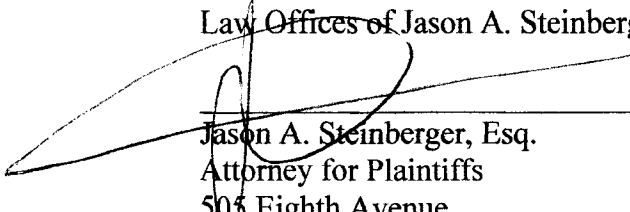
On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the twentieth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the twenty-first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

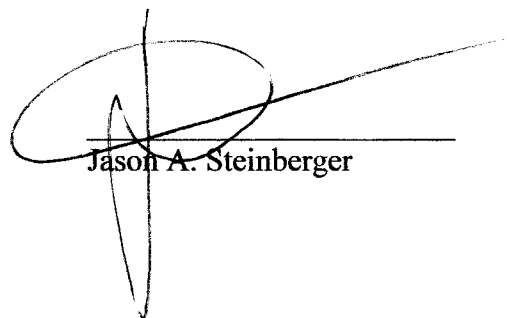


Jason A. Steinberger, Esq.
Attorney for Plaintiffs
505 Eighth Avenue
Suite 701
New York, NY 10018
(646) 256-1007

STATE OF NEW YORK: COUNTY OF BRONX

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: December 28, 2017



Jason A. Steinberger

Index Number:**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

OLUSEGUN GRANT, SAIBO SIDIBEH and MUHAMMED GUMANEH,

Plaintiffs

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER WILFREDO BENITEZ, SHIELD 15506 OF THE 44 PRECINCT AND NEW
YORK CITY POLICE OFFICERS JOHN DOE,****Defendant.**

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC
505 Eighth Avenue
Suite 701
New York, NY 10018To:
Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for**PLEASE TAKE NOTICE**☐ that the within is a (certified) true copy of
☐ entered in the office of the clerk of the within named Court on**NOTICE
OF ENTRY**☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.
NOTICE OF once of the Judges of the within named Court,
SETTLEMENT at

on 200 , at m.

Dated:

JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018To:
Attorney(s) for